



Commercial Excess Liability Policy

Corporate Office
945 E. Paces Ferry Rd.
Atlanta, GA 30326-1160

CLAIM OFFICE:

Mail claims to:
945 E. Paces Ferry Rd., St. 1800
Atlanta, GA 30326-1160

Fax claims to:
(404) 262-4403
(Attn: Claims Department)

Email claims to:
reportclaims@rsui.com
(Attn: Claims Department)



COMMERCIAL EXCESS LIABILITY POLICY DECLARATIONS

945 E. Paces Ferry Rd.
Suite 1800
Atlanta, GA 30326

THIS POLICY IS ISSUED BY THE COMPANY DESIGNATED BELOW:

COMPANY NAME RSUI Indemnity Company
(A New Hampshire Stock Co.)

POLICY NUMBER: NHA609443

NEW: ☐

RENEWAL OF: NHA603266

PRODUCER
CODE NO: _____

PRODUCER'S NAME AND ADDRESS

ITEM 1
NAMED
INSURED
AND
MAILING
ADDRESS
Canopy Roofing LLC
5416 E Baseline Rd Ste 129A
Mesa, AZ 85206

ITEM 2	COVERAGE: EXCESS		
ITEM 3	POLICY PERIOD FROM 10/16/2025 TO 10/16/2026 12:01 A.M. STANDARD TIME AT THE ADDRESS OF THE NAMED INSURED		
ITEM 4 LIMITS AND PREMIUM	LIMITS OF INSURANCE		
	EACH OCCURRENCE		AGGREGATE WHERE APPLICABLE
	\$ 6,000,000		\$ 6,000,000
	PREMIUM		
	\$55,000.00		
	☒ FLAT ☐ AUDITABLE – SEE PREMIUM COMPUTATION ENDORSEMENT		

ITEM 5
ENDORSEMENTS ATTACHED: Policy Jacket: RSG 31001 0507, Schedule of Underlying Insurance-RSG 30002 0803
SEE SCHEDULE OF POLICY ATTACHMENTS AND FORMS

Countersigned By

Authorized Representative

Date Issued November 06, 2025

AS

RSG 30001 1117



COMMERCIAL EXCESS LIABILITY POLICY DECLARATIONS

POLICY NO. NHA609443

ITEM 6. SCHEDULE OF UNDERLYING INSURANCE

Type of Policy	Insurer	Applicable Limit
AUTO LIABILITY	SELECTIVE INSURANCE COMPANY	\$1,000,000 COMBINED SINGLE LIMIT

SCHEDULE OF POLICY ATTACHMENTS AND FORMS

<u>Form Number</u>	<u>Form Title</u>	<u>Comment</u>
RSG 99022 1022	State Fraud Statement	
RSG 36003 0904	Absolute Asbestos Exclusion	
RSG 33030 0112	Arizona Changes - Cancellation and Nonrenewal	
RSG 36149 0522	Exclusion - Fluorinated Compounds	
RSG 36016 0824	Exclusion - Real and Personal Property - Care Custody and Control	
RSG 36139 0520	Limitation of Coverage to Excess Automobile Liability	
RSG 36037 0116	Uninsured Underinsured Motorist Exclusion	
RSG 36044 0404	War Liability Exclusion	

State Fraud Statements

(Signature Required for New York Only)

ARKANSAS, LOUISIANA, RHODE ISLAND, TEXAS AND WEST VIRGINIA FRAUD STATEMENT

Any person who knowingly presents a false or fraudulent claim for payment of a loss or benefit or knowingly presents false information in an application for insurance is guilty of a crime and may be subject to fines and confinement in prison.

ALASKA FRAUD STATEMENT

A person who knowingly and with intent to injure, defraud, or deceive an insurance company files a claim containing false, incomplete, or misleading information may be prosecuted under state law.

ALABAMA FRAUD STATEMENT

Any person who knowingly presents a false or fraudulent claim for payment of a loss or benefit or who knowingly presents false information in an application for insurance is guilty of a crime and may be subject to restitution fines or confinement in prison, or any combination thereof.

ARIZONA FRAUD STATEMENT

For your protection Arizona law requires the following statement to appear on this form. Any person who knowingly presents a false or fraudulent claim for payment of a loss is subject to criminal and civil penalties.

CALIFORNIA FRAUD STATEMENT

For your protection, California law requires that you be made aware of the following: Any person who knowingly presents false or fraudulent information to obtain or amend insurance coverage or to make a claim for the payment of a loss is guilty of a crime and may be subject to fines and confinement in state prison.

COLORADO FRAUD STATEMENT

It is unlawful to knowingly provide false, incomplete, or misleading facts or information to an insurance company for the purpose of defrauding or attempting to defraud the company. Penalties may include imprisonment, fines, denial of insurance, and civil damages. Any insurance company or agent of an insurance company who knowingly provides false, incomplete, or misleading facts or information to a policyholder or claimant for the purpose of defrauding or attempting to defraud the policyholder or claimant with regard to a settlement or award payable from insurance proceeds shall be reported to the Colorado division of insurance within the department of regulatory agencies.

DELAWARE FRAUD STATEMENT

Any person who knowingly, and with intent to injure, defraud or deceive any insurer, files a statement of claim containing any false, incomplete or misleading information is guilty of a felony.

DISTRICT OF COLUMBIA FRAUD STATEMENT

WARNING: It is a crime to provide false, or misleading information to an insurer for the purpose of defrauding the insurer or any other person. Penalties include imprisonment and/or fines. In addition, an insurer may deny insurance benefits if false information materially related to a claim was provided by the applicant.

FLORIDA FRAUD STATEMENT

Any person who knowingly and with intent to injure, defraud or deceive any insurer, files a statement of claim or an application containing any false, incomplete, or misleading information is guilty of a felony of the third degree.

HAWAII FRAUD STATEMENT

For your protection, Hawaii law requires you to be informed that any person who presents a fraudulent claim for payment of a loss or benefit is guilty of a crime punishable by fines or imprisonment, or both.

IDAHO FRAUD STATEMENT

Any person who knowingly, and with intent to defraud or deceive any insurance company, files a statement of claim containing any false, incomplete or misleading information is guilty of a felony.

INDIANA FRAUD STATEMENT

Any person who knowingly and with intent to defraud an insurer files a statement of claim containing any false, incomplete, or misleading information commits a felony.

KANSAS FRAUD STATEMENT

An act committed by any person who, knowingly and with intent to defraud, presents, causes to be presented or prepares with knowledge or belief that it will be presented to or by an insurer, purported insurer, broker or any agent thereof, any written, electronic, electronic impulse, facsimile, magnetic, oral, or telephonic communication or statement as part of, or in support of, an application for the issuance of, or the rating of an insurance policy for personal or commercial insurance, or a claim for payment or other benefit pursuant to an insurance policy for commercial or personal insurance which such person knows to contain materially false information concerning any fact material thereto; or conceals, for the purpose of misleading, information concerning any fact material thereto.

KENTUCKY FRAUD STATEMENT

Any person who knowingly and with intent to defraud any insurance company or other person files an application for insurance containing any materially false information or conceals, for the purpose of misleading, information concerning any fact material thereto commits a fraudulent insurance act, which is a crime.

MAINE FRAUD STATEMENT

It is a crime to knowingly provide false, incomplete or misleading information to an insurance company for the purpose of defrauding the company. Penalties may include imprisonment, fines or a denial of insurance benefits.

MARYLAND FRAUD STATEMENT

Any person who knowingly or willfully presents a false or fraudulent claim for payment of a loss or benefit or who knowingly or willfully presents false information in an application for insurance is guilty of a crime and may be subject to fines and confinement in prison.

MINNESOTA FRAUD STATEMENT

Any person who files a claim with intent to defraud or helps commit a fraud against an insurer is guilty of a crime.

NEW HAMPSHIRE FRAUD STATEMENT

Any person who, with a purpose to injure, defraud or deceive any insurance company, files a statement of claim containing any false, incomplete or misleading information is subject to prosecution and punishment for insurance fraud, as provided in RSA 638:20.

NEW JERSEY FRAUD STATEMENT

Any person who includes any false or misleading information on an application for an insurance policy is subject to criminal and civil penalties.

NEW MEXICO FRAUD STATEMENT

Any person who knowingly presents a false or fraudulent claim for payment of a loss or benefit or knowingly presents false information in an application for insurance is guilty of a crime and may be subject to civil fines and criminal penalties.

OHIO FRAUD STATEMENT

Any person who, with intent to defraud or knowing that he is facilitating a fraud against an insurer, submits an application or files a claim containing a false or deceptive statement is guilty of insurance fraud.

OKLAHOMA FRAUD STATEMENT

WARNING: Any person who knowingly and with intent to injure, defraud, or deceive any insurer, makes any claim for the proceeds of an insurance policy containing any false, incomplete or misleading information is guilty of a felony.

OREGON FRAUD STATEMENT

Any person who knowingly files a claim containing a false or deceptive statement for payment of a loss or benefit or knowingly presents materially false information in an application for insurance may be guilty of a crime and may be subject to fines and confinement in prison.

PENNSYLVANIA FRAUD STATEMENT

Any person who knowingly and with intent to defraud any insurance company or other person files an application for insurance or statement of claim containing any materially false information, or conceals for the purpose of misleading, information concerning any fact material thereto commits a fraudulent insurance act, which is a crime and subjects such person to criminal and civil penalties.

PUERTO RICO FRAUD STATEMENT

Any person who knowingly and with the intention of defrauding presents false information in an insurance application, or presents, helps, or causes the presentation of a fraudulent claim for the payment of a loss or any other benefit, or presents more than one claim for the same damage or loss, shall incur a felony and, upon conviction, shall be sanctioned for each violation by a fine of not less than five thousand dollars (\$5,000) and not more than ten thousand dollars (\$10,000), or a fixed term of imprisonment for three (3) years, or both penalties. Should aggravating circumstances be present, the penalty thus established may be increased to a maximum of five (5) years, if extenuating circumstances are present, it may be reduced to a minimum of two (2) years.

TENNESSEE, VIRGINIA, AND WASHINGTON FRAUD STATEMENT

It is a crime to knowingly provide false, incomplete or misleading information to an insurance company for the purpose of defrauding the company. Penalties include imprisonment, fines and denial of insurance benefits.

SIGNATURE REQUIRED – NEW YORK ONLY

NEW YORK FRAUD STATEMENT

Any person who knowingly and with intent to defraud any insurance company or other person files an application for insurance or statement of claim containing any materially false information, or conceals for the purpose of misleading, information concerning any fact material thereto, commits a fraudulent insurance act, which is a crime, and shall also be subject to a civil penalty not to exceed five thousand dollars and the stated value of the claim for each such violation.

NHA609443

Policy Number

Canopy Roofing LLC

Insured/Applicant/Claimant (Legal Entity)

By (Authorized Representative) - Printed Name

By (Authorized Representative) - Signature

Title

Date

This Endorsement Changes The Policy. Please Read It Carefully.

ABSOLUTE ASBESTOS EXCLUSION

This endorsement modifies insurance provided under the following:

Commercial Excess Liability Policy

This insurance does not apply to:

1. Any liability caused by, resulting from or arising out of asbestos, removal of asbestos, exposure to asbestos, or any products containing asbestos;
2. The costs of abatement, mitigation, removal or disposal of asbestos;
3. Any supervision, instructions, recommendations, warnings or advice given or which should have been given in connection with items **1.** or **2.** above; and
4. Any obligation to share damages with or repay someone else who must pay damages in connection with items **1.**, **2.**, or **3.** above.

This endorsement effective 10/16/2025
forms part of Policy Number NHA609443
issued to Canopy Roofing LLC
by RSUI Indemnity Company

This Endorsement Changes The Policy. Please Read It Carefully.

ARIZONA CHANGES - CANCELLATION AND NONRENEWAL

This endorsement modifies insurance provided under the following:

Commercial Excess Liability Policy

A. The following is added to condition 4. **Cancellation:**

7. Cancellation Of Policies In Effect For 60 Days or More

If this policy has been in effect for 60 days or more, or if this policy is a renewal of a policy we issued, we may cancel this policy only for one or more of the following reasons:

- a. Nonpayment of premium;
- b. Your conviction of a crime arising out of acts increasing the hazard insured against;
- c. Acts or omissions by you or your representative constituting fraud or material misrepresentation in the procurement of this policy, in continuing this policy or in presenting a claim under this policy;
- d. Substantial change in the risk assumed, except to the extent that we should have reasonably foreseen the change or contemplated the risk in writing the contract;
- e. Substantial breach of contractual duties or conditions;
- f. Loss of reinsurance applicable to the risk insured against resulting from termination of treaty or facultative reinsurance initiated by our reinsurer or reinsurers;
- g. Determination by the Director of Insurance that the continuation of the policy would place us in violation of the insurance laws of this state or would jeopardize our solvency; or
- h. Acts or omissions by you or your representative which materially increase the hazard insured against.

If we cancel this policy based on one or more of the above reasons, we will mail by certified mail to the first Named Insured, and mail to the agent, if any, written notice of cancellation stating the reasons for cancellation. We will mail this notice to the last mailing addresses known to us, at least:

- a. 10 days before the effective date of cancellation if we cancel for nonpayment of premium.
- b. 45 days before the effective date if we cancel for any of the other reasons.

B. The following Conditions are added and supersede any other provision to the contrary:

6. Nonrenewal

- a. If we elect not to renew this policy, we will mail by certified mail to the first Named Insured, and mail to the agent, if any, written notice of nonrenewal. We will mail this notice to the last mailing addresses known to us at least 45 days prior to the expiration date of the policy.
- b. If notice is mailed, proof of mailing will be sufficient proof of notice.
- c. If either one of the following occurs, we are not required to provide written notice of nonrenewal:
 - (1) We or a company within the same insurance group has offered to issue a renewal policy; or
 - (2) You have obtained replacement coverage or agreed in writing to do so.
- d. If written notice of nonrenewal is mailed less than 45 days prior to expiration of this policy and neither c.(1) or c.(2) applies, the coverage shall remain in effect until 45 days after the notice is mailed. Earned premium for any period of coverage that extends beyond the expiration date of this policy shall be considered pro rata based upon the previous year's rate.

This endorsement effective 10/16/2025
 forms part of Policy Number NHA609443
 issued to Canopy Roofing LLC
 by RSUI Indemnity Company

7. **Renewal**

- a. If we elect to renew this policy and the renewal is subject to any of the following:

- (1) Increase in premium;
- (2) Change in deductible;
- (3) Reduction in limits of insurance; or
- (4) Substantial reduction in coverage;

We will mail or deliver written notice of the change(s) to the first Named Insured, at the last mailing address known to us, at least 30 days before the anniversary or expiration date of this policy.

- b. If the renewal is subject to any condition described in a.(1) through a.(4) above, and we fail to provide notice 30 days before the anniversary or expiration date of this policy, the following procedures apply:

- (1) The present policy will remain in effect until the earlier of the following:

- (a) 30 days after the date of mailing or delivery of the notice; or
- (b) The effective date of replacement coverage obtained by the first Named Insured.

- (2) If the first Named Insured elects not to renew, any earned premium for the period of extension of the terminated policy will be calculated pro rata at the lower of the following rates:

- (a) The rates applicable to the terminated policy; or
- (b) The rates presently in effect.

- (3) If the first Named Insured accepts the renewal, the premium increase, if any, and other changes are effective the day following this policy's anniversary or expiration date.

This Endorsement Changes The Policy. Please Read It Carefully.

EXCLUSION – FLUORINATED COMPOUNDS

This endorsement modifies insurance provided under the following:

Commercial Excess Liability Policy

- A.** This insurance does not apply to any liability, loss, cost, defense, or expense arising out of, based upon, caused by, directly or indirectly resulting from, attributable to, or in consequence of the following:
1. Ingestion of, inhalation of, contact with, exposure to, or existence of “fluorinated compounds”;
 2. The manufacture, packing, distribution, sale, installation, application, repair, removal, encapsulation, abatement, replacement, handling, recycling, or disposal of “fluorinated compounds”;
 3. The discharge, dispersal, escape, leaching, leakage, flaking, friability, presence, migration, release, or seepage of “fluorinated compounds”;
 4. Loss of, loss of use of, damage to, or contamination of any property, land, water, or water source due to the presence of “fluorinated compounds”;
 5. The remediation of any property, land, water, or water source due to contamination resulting from the presence of “fluorinated compounds”, which includes, but is not limited to, testing, studying, monitoring, surveying, engineering, design, planning, treatment, abatement, encapsulation, control, clean-up, removal, or any other action as necessitated by the remediation process;
 6. Any violation of any international, federal, state, or local statute, law, rule, ordinance, or regulation regarding “fluorinated compounds”; or
 7. Any other liability, damage, loss, cost or expense arising out of or related in any way to “fluorinated compounds”.
- B.** This exclusion applies even if the claims or suits against any insured:
1. Are brought by or on behalf of any federal, state, municipal, or other governmental entity or agency seeking damages, fines, penalties, or any other type of relief, whether monetary or not, arising out of, based upon, caused by, directly or indirectly resulting from, attributable to, or in consequence of that which is excluded by **A.1.** through **A.7.** above;
 2. Are brought by or on behalf of any individual or entity seeking certification at any time as a class action, whether or not such action is actually certified, arising out of, based upon, caused by, directly or indirectly resulting from, attributable to, or in consequence of that which is excluded by **A.1.** through **A.7.** above; or
 3. Allege negligence, including but not limited to negligence or other wrongdoing in the supervision, hiring, employment, training, or monitoring of others by any Insured.
- C.** We shall have no duty or obligation to provide or pay for the investigation or defense of any claim or “suit” excluded by this endorsement.
- D.** This exclusion shall not apply to “your product” solely due to the presence of “fluorinated compounds” in such products if a claim or “suit” brought against an insured does not involve “fluorinated compounds”.

This Endorsement effective 10/16/2025
Forms part of Policy Number NHA609443
Issued to Canopy Roofing LLC
By RSUI Indemnity Company

E. For the purposes of this exclusion:

“Fluorinated compounds” means:

1. Any fluorinated or semi-fluorinated chemical compound such as, but not limited to, perfluorinated or polyfluorinated compounds (PFC), perfluoroalkyl or polyfluoroalkyl substances (PFAS), perfluorooctanoic acid (PFOA), perfluorooctanesulfonic acid (PFOS), perfluorooctanesulfonyl fluoride (POSF), GenX, C8, ADONA, or F53B;
2. Any and all substances listed on the United States Environmental Protection Agency Master List of PFAS substances, or on any corresponding list of PFAS substances maintained by any other federal, state, or local agency or authority;
3. Any other organofluorine compound that is known, alleged, or suspected to be harmful to the environment or to living organisms;
4. Except as described in item **D.** of this endorsement, any goods or products, including “your product”, that contains or is comprised of, in any amount, any substance included in **E.1.** through **E.3.** above;
5. Any chemical, component, compound, material, product, or substance containing, comprised of, made of, or derived from any substance included in **E.1.** through **E.3.** above; or
6. Any associated homologues, isomers, salts, ethers, esters, alcohols, acids, precursor chemicals and derivative, formulation, transformation, degradation, byproduct, compound, intended replacement, or generic version of any substance included in **E.1.** through **E.3.** above.

“Suit” and “your product” shall be defined as in the “Underlying Insurance”.

This Endorsement Changes The Policy. Please Read It Carefully.

EXCLUSION – REAL AND PERSONAL PROPERTY – CARE, CUSTODY AND CONTROL

This endorsement modifies insurance provided under the following:

Commercial Excess Liability Policy

This insurance shall not apply to "property damage" to:

1. Property you, own, rent or occupy, including any costs or expenses incurred by you, or any other person, organization or entity, for repair, replacement, enhancement, restoration or maintenance of such property for any reason, including prevention of injury to a person or damage to another's property;
2. Premises you sell, give away or abandon, if the "property damage" arises out of any part of those premises;
3. Property loaned to you;
4. Personal property in the care, custody or control of the insured;
5. That particular part of real property on which you or any contractors or subcontractors working directly or indirectly on your behalf are performing operations, if the "property damage" arises out of those operations); or
6. That particular part of any property that must be restored, repaired or replaced because "your work" was incorrectly performed on it.

Paragraphs 1, 3, and 4 of this exclusion do not apply to "property damage" (other than damage by fire) to premises, including the contents of such premises, rented to you for a period of seven or fewer consecutive days.

Paragraph 2 of this exclusion does not apply if the premises are "your work" and were never occupied, rented or held for rental by you.

Paragraphs 3, 4, 5 and 6 of this exclusion do not apply to liability assumed under a sidetrack agreement.

Paragraph 6 of this exclusion does not apply to "property damage" included in the "products-completed operations hazard".

"Property damage", "your work", and "products-completed operations hazard" shall be as defined in the "Underlying Insurance".

This Endorsement effective 10/16/2025
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Issued to Canopy Roofing LLC
By RSUI Indemnity Company

This Endorsement Changes The Policy. Please Read It Carefully.

LIMITATION OF COVERAGE TO EXCESS AUTOMOBILE LIABILITY

This endorsement modifies insurance provided under the following:

Commercial Excess Liability Policy

This insurance is limited to excess Auto Liability coverage part only, as shown in the SCHEDULE OF UNDERLYING INSURANCE.

Except as per above, this insurance does not apply to any liability for injury, damage, loss, cost, or expense arising out of, caused by, or contributed to any other coverage(s) as provided in the SCHEDULE OF UNDERLYING INSURANCE.

This Endorsement effective 10/16/2025
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This Endorsement Changes The Policy. Please Read It Carefully.

UNINSURED/UNDERINSURED MOTORIST EXCLUSION

This endorsement modifies insurance provided under the following:

Commercial Excess Liability Policy

This insurance does not apply to any liability arising out of the following auto coverages:

1. First party physical damage coverage;
2. No-fault coverage;
3. Personal injury protection or auto medical payments coverage; or
4. Uninsured or underinsured motorists coverage.

This endorsement effective 10/16/2025
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by RSUI Indemnity Company

This Endorsement Changes The Policy. Please Read It Carefully.

WAR LIABILITY EXCLUSION

This endorsement modifies insurance provided under the following:

Commercial Excess Liability Policy

The following is added to SECTION II. - EXCLUSIONS:

Any liability however caused, arising, directly or indirectly, out of:

1. War, including undeclared or civil war; or
2. Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
3. Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

This endorsement effective 10/16/2025
forms part of Policy Number NHA609443
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COMMERCIAL EXCESS LIABILITY POLICY

Various provisions in this policy restrict coverage. Read the entire policy and any underlying insurance carefully to determine rights, duties and what is covered and not covered.

Throughout this policy the words “you” and “your” refer to the Named Insured shown in the Declarations and any other person or organization qualifying as an Insured under the “Underlying Insurance”. The words “we” and “us” refer to the COMPANY shown in the DECLARATIONS. Other words and phrases that appear in quotation marks have special meanings. Refer to Definitions (SECTION V).

SECTION I – EXCESS LIABILITY INSURANCE

1. Insuring Agreement

- a. We will pay those sums in excess of the limits shown in Item 6 of the Declarations, Schedule of Underlying Insurance, that you become legally obligated to pay as damages because of injury to which this insurance applies, provided that the “Underlying Insurance” also applies, or would apply but for the exhaustion of its applicable Limits of Insurance.
- b. This insurance is subject to the same terms, conditions, agreements, exclusions and definitions as the “Underlying Insurance”, except:
 - (1) We will have no obligation under this insurance with respect to any claim or suit that is settled without our consent; and
 - (2) With respect to any provisions to the contrary contained in this insurance.
- c. The amount we will pay for damages shall not exceed the Limits of Insurance stated in Item 4. of the Declarations.
- d. We will have the right to participate in the defense of claims or suits against you seeking damages because of injury to which this insurance may apply. We will have a duty to defend such claims or suits when the applicable limit of insurance of the “Underlying Insurance” has been exhausted by payment of judgments, settlements and any cost or expense subject to such limit. We may, at our discretion, investigate and settle any claim or suit. Our right and duty to defend end when the applicable limit shown in the Declarations has been used up by our payment of judgments or settlements.

SECTION II – EXCLUSIONS

The exclusions applicable to the “Underlying Insurance” also apply to this insurance.

SECTION III – LIMITS OF INSURANCE

1. The Limit of Insurance shown in the Declarations as EACH OCCURRENCE is the most we will pay for damages arising out of any one occurrence or offense.
2. The Limit of Insurance shown in the Declarations as AGGREGATE WHERE APPLICABLE shall apply in the same manner as the aggregate limits shown in the SCHEDULE OF UNDERLYING INSURANCE.

SECTION IV – CONDITIONS

If any of the following conditions are contrary to conditions contained in the “Underlying Insurance” the provisions contained in this policy apply.

1. Appeals

In the event the underlying insurer(s) elects not to appeal a judgment in excess of the limits of the “Underlying Insurance”, we may elect to make such an appeal. If we so elect, we shall be liable, in addition to the applicable Limits of Insurance, for all defense expenses we incur.

2. Maintenance of “Underlying Insurance”

- a. You agree to maintain the “Underlying Insurance” in full force and effect during the term of this policy, and to inform us within 30 days of any replacement or material change of that “Underlying Insurance” by the same or another company. If you do not maintain the “Underlying Insurance” in full force and effect or fail to meet all conditions and warranties of such “Underlying Insurance”, this policy shall apply as if those policies were available and collectible.
- b. Reduction or exhaustion of the aggregate limit of any “Underlying Insurance” by payments for judgments, settlements or any costs or expenses subject to that limit, will not be a failure to maintain “Underlying Insurance” in full force and effect.
- c. No statement contained in this condition limits our right to cancel or not renew this policy.

For purposes of this policy, if any "Underlying Insurance" is not available or collectible because of:

- a. the bankruptcy or insolvency of the underlying insurer(s) providing such "Underlying Insurance"; or
- b. the inability or failure for any other reason of such underlying insurer(s) to comply with any of the obligations of its policy;

then this policy shall apply (and amounts payable hereunder shall be determined) as if such "Underlying Insurance" were available and collectible.

3. **Other Insurance**

This insurance is excess over any other valid and collectible insurance whether primary, excess, contingent or any other basis, except other insurance written specifically to be excess over this insurance.

4. **Cancellation**

1. The first Named Insured shown in the Declarations may cancel this policy by mailing or delivering advance written notice of cancellation to us.
2. We may cancel this policy by mailing or delivering written notice of cancellation to the first Named Insured at least:
 - a. 10 days before the effective date of cancellation if we cancel for nonpayment of premium; or
 - b. 60 days before the effective date of cancellation if we cancel for any other reason.
3. We will mail or deliver our notice to the Named Insured's last mailing address known to us.
4. Notice of cancellation will state the effective date of cancellation. The policy will end on that date.
5. If this policy is cancelled, we will send the first Named Insured any premium refund due. If we cancel, the refund will be pro rata. If the first Named Insured cancels, the refund may be less than pro rata. The cancellation will be effective even if we have not made or offered a refund.
6. If notice is mailed, proof of mailing will be sufficient proof of notice.

5. **Policy Period**

This insurance will respond to injury or damage that occurs, or arises from an offense committed, during the Policy Period shown in the Declarations.

SECTION V – DEFINITIONS

1. "Underlying Insurance" means the policies or self-insurance listed in the Schedule of Underlying Insurance, any replacements thereof and other policies purchased or issued for newly acquired or formed organizations. Policies purchased or issued replacements of policies or self-insurance listed in the Schedule of Underlying Insurance or for newly acquired or formed organizations shall not be more restrictive than those listed in the Schedule of Underlying Insurance. All "Underlying Insurance" shall be maintained by you in accordance with Condition 2. of this policy.

We have officially signed this policy below. This policy is not valid unless countersigned on the Declaration page by our fully authorized representative.



President

**RSUI Indemnity Company
Landmark American Insurance Company
Covington Specialty Insurance Company**



Secretary

**RSUI Indemnity Company
Landmark American Insurance Company
Covington Specialty Insurance Company**